

SUPREME COURT STATE OF NEW YORK
COUNTY OF QUEENS

-----X
TIFFANY WATSON-VALGEAN, As Administrator
of the Estate of SHAWN VALGEAN, Deceased,
TIFFANY WATSON-VALGEAN, Individually,
ALEXUS VALGEAN, Individually, and HAKEEM
VALGEAN, a Minor, by His M/N/G TIFFANY
WATSON-VALGEAN, Individually,

SUMMONS

Index No.:

Basis of venue:
place of occurrence

Plaintiffs,

-against-

CITY OF NEW YORK, JOHN VITALE, Individually,
ANNIE MATHEW, Individually, BARREN GORDON,
Individually, and JOHN and JANE DOE 1-10, Individually,

Defendants.
-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Decedent's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 10, 2017

BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiffs
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By:


BRETT H. KLEIN

To: City of New York, 100 Church Street, New York, New York 10038
John Vitale, c/o NYPD, 1 Police Plaza, New York, New York 10038
Annie Mathew, c/o NYC DOC, 75-20 Astoria Blvd., East Elmhurst, NY 11370
Barren Gordon, c/o NYC DOC, 75-20 Astoria Blvd., East Elmhurst, NY 11370

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VALGEAN, a Minor, by his M/N/G TIFFANY
WATSON-VALGEAN, Individually,

VERIFIED COMPLAINT

Index No.:

Plaintiffs,

-against-

CITY OF NEW YORK, JOHN VITALE, Individually,
ANNIE MATHEW, Individually, BARREN GORDON,
Individually, and JOHN and JANE DOE 1-10, Individually,

Defendants.
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Plaintiffs, by their attorneys, BRETT H. KLEIN, ESQ., LLP, as and for their Verified
Complaint, alleges as follows:

INTRODUCTION

1. This action arises from the untimely death of SHAWN VALGEAN, who despite the City and its employees' duty to monitor him at all times while in their custody, tragically and needlessly died in City custody while imprisoned inside Queens Central Booking on January 10, 2015, due to the defendants' negligence, gross negligence and callous disregard for SHAWN VALGEAN'S safety and well-being.

2. At all times hereinafter mentioned, plaintiff TIFFANY WATSON-VALGEAN was and still is a resident of the County of Queens, State of New York. SHAWN VALGEAN, the decedent, was plaintiff's husband, and was only 45 years of age on the date of his tragic and untimely demise. SHAWN VALGEAN was a loving and supportive father of plaintiffs

ALEXUS VALGEAN and HAKEEM VALGEAN, a Minor. HAKEEM VALGEAN will be 18 on February 17, 2017.

3. At all times hereinafter mentioned, the defendant, CITY OF NEW YORK (“City”), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant City maintains the New York City Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

5. Defendant City maintains the New York City Department of Correction (“DOC”), a duly authorized public authority and/or correction department, authorized to perform all functions of a correction department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

6. At all times hereinafter mentioned, defendants JOHN VITALE and JOHN and JANE DOE 1-5 were a duly sworn police officer of the NYPD, and were acting under the supervision of said department and according to their official duties.

7. At all times hereinafter mentioned, defendants ANNIE MATHEW, BARREN GORDON, and JOHN and JANE DOE 6-10 were duly sworn correction officers of the DOC, and were acting under the supervision of said department and according to their official duties.

8. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in purported compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the CITY OF NEW YORK.

9. Each and all of the acts and/or omissions of the defendants alleged herein were done by said defendants while acting within the scope of their employment for defendant CITY OF NEW YORK, which is vicariously liable for the acts of its employees under the doctrine of *respondeat superior*.

10. Plaintiff timely filed a Notice of Claim and has otherwise complied with New York General Municipal Law §50.

11. More than 30 days have elapsed since the filing of plaintiff's Notice of Claim, and defendant CITY OF NEW YORK has failed to pay or adjust plaintiff's claims.

12. This action falls within one or more of the exceptions as set forth in CPLR 1602 as the defendants are alleged, *inter alia*, to have acted in reckless disregard for the safety and well-being of the Decedent, SHAWN VALGEAN.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. SHAWN VALGEAN's untimely death occurred on January 10, 2015 while he was imprisoned inside the Queens Central Booking facility located at 120-01 Queens Boulevard in Kew Gardens, New York.

15. On January 9, 2015 at approximately 7:00 p.m., SHAWN VALGEAN was arrested by NYPD officers, including defendants JOHN VITALE and JOHN and JANE DOE 1-5, within the confines of the NYPD 106th precinct in Queens.

16. Said defendants knew or should have known that at some point while he was under their care, custody and/or control, or otherwise within their view, that SHAWN VALGEAN ingested alleged contraband containing heroin.

17. Said defendants did nothing to aid SHAWN VALGEAN, despite their affirmative obligation to do so.

18. At around midnight on January 9, 2015 into January 10, 2015, SHAWN VALGEAN was taken to Queens Central Booking.

19. On January 10, 2015 at approximately 12:30 a.m., SHAWN VALGEAN was placed into the Central Booking "Adult Holding Pen #9". While awaiting arraignment for charges arising from his arrest on January 9, 2015, VALGEAN was held in said holding pen under the care, custody and control of DOC and its personnel, including defendant DOC Officers ANNIE MATHEW, BARREN GORON, and JOHN and JANE DOE 6-10.

20. Defendant DOC officers were required to visually check on prisoners in the Adult Holding Pen at least every fifteen minutes.

21. Upon information and belief, the defendant DOC officers failed to properly perform their duties via supervising and monitoring SHAWN VALGEAN while he was under their care, custody and control. Instead, SHAWN VALGEAN was dying on the floor of his cell ignored by the defendants.

22. SHAWN VALGEAN was discovered unconscious in a pool of vomit on the floor of his cell on January 10, 2015 at approximately 4:30 p.m.

23. SHAWN VALGEAN was taken to Jamaica Hospital, where he was declared dead at approximately 5:25 p.m.

AS AND FOR A FIRST CAUSE OF ACTION

24. That the plaintiffs repeat, reiterate and reallege each and every allegation of the complaint in paragraphs numbered "1" through "23", with the same force and effect as though each and every allegation were set forth more fully herein at length below.

25. That by reason of the foregoing, the Decedent, SHAWN VALGEAN, became gravely ill and ultimately succumbed to the aforesaid injury and is now deceased.

26. That by reason of the foregoing, the Decedent, SHAWN VALGEAN, was compelled and did necessarily require medical aid and attention and his Estate did necessarily pay and become liable therefore, for medicines and upon information and belief, the Decedent, SHAWN VALGEAN'S estate, further incurred funeral expenses.

27. That by reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the Decedent, SHAWN VALGEAN, became severely ill, suffered conscious pain and suffering, consciousness of impending death, and emotional distress, and ultimately succumbed to the aforesaid injuries.

28. That by reason of the aforesaid, the plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

29. That the plaintiffs repeat, reiterate and reallege each and every allegation of the complaint in paragraphs numbered "1" through "28", with the same force and effect as though each and every allegation were set forth more fully herein at length below.

30. That the defendants and their agents, servants and/or employees negligently, grossly negligently, and/or otherwise recklessly caused the wrongful death of the decedent, SHAWN VALGEAN, depriving plaintiff of his financial contributions, society, companionship and guidance, as well as other pecuniary losses, in an amount to be proven at trial.

31. That by reason of the aforesaid, the plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

32. That the plaintiff repeat, reiterate and reallege each and every allegation of the complaint in paragraphs numbered "1" through "31", with the same force and effect as though each and every allegation were set forth more fully herein at length below.

33. That at all times hereinafter mentioned, plaintiff, TIFFANY WATSON-VALGEAN, was the spouse of the Decedent, SHAWN VALGEAN, and as such said plaintiff, TIFFANY WATSON-VALGEAN, was entitled to the society, services, guidance, support, and consortium of the Decedent, SHAWN VALGEAN.

34. By reason of the afore-described negligence of the defendants, their agents, servants and/or employees, the plaintiff, TIFFANY WATSON-VALGEAN, as the spouse of SHAWN VALGEAN, was deprived of the aforesaid society, services and consortium of the SHAWN VALGEAN, and shall forever be deprived of said society, services and consortium.

35. That by reason of the aforesaid, the plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

36. That the plaintiffs repeat, reiterate and reallege each and every allegation of the complaint in paragraphs numbered "1" through "35", with the same force and effect as though each and every allegation were set forth more fully herein at length below.

37. That at all times hereinafter mentioned, plaintiffs ALEXUS VALGEAN and HAKEEM VALGEAN were the children of the Decedent, SHAWN VALGEAN, and as such said plaintiffs were entitled to the society, services, guidance, and parental care of the Decedent, SHAWN VALGEAN.

38. By reason of the afore-described negligence of the defendants, their agents, servants

and/or employees, plaintiffs ALEXUS VALGEAN and HAKEEM VALGEAN, as the children of SHAWN VALGEAN, were deprived of the aforesaid society, and services of SHAWN VALGEAN, and shall forever be deprived of said society, service, guidance, and parental care and support.

39. That by reason of the aforesaid, the plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

40. That the plaintiffs repeat, reiterate and reallege each and every allegation of the complaint in paragraphs numbered "1" through "39", with the same force and effect as though each and every allegation were set forth more fully herein at length below.

41. That by reason of the foregoing failure to safely keep the Decedent while committed to the care, custody and control of the DOC in its Queens Central Booking jail facility, the defendants violated New York Correction Law § 500, et seq.

42. That by reason of the aforesaid, the plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

DEMAND FOR JURY TRIAL

43. Plaintiffs hereby demand a trial by jury of all issues so triable.

WHEREFORE, plaintiffs demand judgment against the defendants for compensatory damages in a sum to be determined by the trier of fact, for punitive damages against the individually named defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief to the plaintiffs as to the court seems just and proper.

Dated: New York, New York
January 10, 2017

BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiff
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By: 
BRETT H. KLEIN

ATTORNEY VERIFICATION

STATE OF NEW YORK)

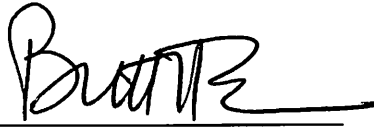
COUNTY OF NEW YORK)

BRETT H. KLEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

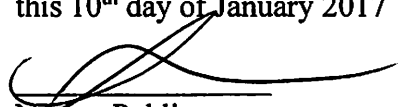
I am an attorney at **BRETT H. KLEIN, ESQ., PLLC**, attorneys for the plaintiff **Tiffany Watson-Valgean**, Individually and as Administrator of the Estate of **Shawn Valgean**. I have read the annexed **SUMMONS** and **VERIFIED COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not the plaintiff is that plaintiff does not reside in the county wherein the undersigned maintains my law office.

Dated: New York, New York
January 10, 2017


Brett H. Klein

Sworn to before me
this 10th day of January 2017


Notary Public

LISSA GREEN-STARK
NOTARY PUBLIC-STATE OF NEW YORK
No. 02GR6247505
Qualified in Kings County
My Commission Expires August 29, 2016

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SUMMONS AND VERIFIED COMPLAINT

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